surprising. At a later stage of the trial, when Senior Advocate Ram Jethmalani agreed to represent Geelani, Shiv Sena mobs ransacked his Bombay office.) The judge expressed his inability to do anything about this, and gave Afzal the right to cross-examine witnesses. It's astonishing for the judge to expect a layperson to be able to cross- examine witnesses in a criminal trial. It's a virtually impossible task for someone who does not have a sophisticated understanding of criminal law, including new laws that had just been passed, like POTA, and the amendments to the Evidence Act and the Telegraph Act. Even experienced lawyers were having to work overtime to bring themselves up to date.

The case against Afzal was built up in the trial court on the strength of the testimonies of almost eighty prosecution witnesses: landlords, shopkeepers, technicians from cell-phone companies, the police themselves. This was a crucial period of the trial, when the legal foundation of the case was being laid. It required meticulous back-breaking legal work in which evidence needed to be amassed and put on record, witnesses for the defence summoned, and testimonies from prosecution witnesses cross-questioned. Even if the verdict of the trial court went against the accused (trial courts are notoriously conservative) the evidence could then be worked upon by lawyers in the higher courts. Through this absolutely critical period, Afzal went virtually undefended. It was at this stage that the bottom fell out of his case, and the noose tightened around his neck.

Still, during the trial, the skeletons began to clatter out of the Special Cell's cupboard in an embarrassing heap. It became clear that the accumulation of lies, fabrications, forged documents and serious lapses in procedure began from the very first day of the investigation. The high court and Supreme Court judgements have pointed these things out, but they have just wagged an admonitory finger at the police, or occasionally called it a 'disturbing feature', which is a disturbing feature in itself. At no point in the trial has the police been seriously reprimanded, leave alone penalized. In fact, almost every step of the way, the Special Cell displayed an egregious disregard for procedural norms. The shoddy callousness with which the investigations were carried out demonstrates a worrying confidence that they wouldn't be 'found out,' and if they were, it wouldn't matter very much. They seem to have been dead right.

There is fudging in almost every part of the investigation.